Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1273
Claimant:	Robert Miller
Adjuster:	Alison Sweeney

11-25-24 - Received first notice of loss by phone from the insured driver. Reports a sideswipe while changing lanes on a multi-lane road. Other vehicle reportedly drifted into the insured's lane. Insured reports neck and back pain at scene and was transported to urgent care. Photos of both vehicles requested. Policy confirmed active and coverage reviewed for collision and bodily injury liability.

11-29-24 - Spoke with the claimant's attorney's office. Counsel confirmed representation and asked that all communication go through their firm. Requested the claimant's medical records and the treating provider list. Advised that the property damage estimate will follow once the vehicle is inspected. Noted the attorney's preference for written correspondence.

12-2-24 - Obtained the police report. It lists the other driver as cited for failure to maintain lane. Both drivers gave statements at the scene that are consistent with the sideswipe. No independent witnesses identified so far. Canvass of nearby businesses for dashcam or security footage is pending.

12-6-24 - Received the claimant's treatment summary from the physical therapy clinic. Diagnosis listed as cervical and lumbar strain with limited range of motion. Treatment plan calls for twelve weeks of therapy and a follow-up with an orthopedic provider. Reserve reviewed and adjusted to reflect the anticipated course of care. Forwarded the summary to the bodily injury examiner.

12-14-24 - Attorney's office sent a demand package requesting settlement for the bodily injury claim. Package includes medical bills, a wage loss letter, and a narrative from the treating physician. Reviewing the documentation against the policy limits and the liability position before responding. Scheduled a peer review of the treatment records and set a response deadline on the file diary.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1273
Statement of:	Robert Miller
Taken by:	Alison Sweeney
Date:	11-21-24

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather just keep it to the accident, if that's okay. I'm happy to answer what you need.

Q: That's fine. Can you describe where the accident happened?

A: It was on a multi-lane road in Sugar Land, Texas, during the afternoon. I was in the right lane and I was moving over to get into the left lane because I needed to make a turn ahead.

Q: What happened when you changed lanes?

A: I checked my mirror and didn't see anything right beside me, so I signaled and started to move over. Then I heard a loud scrape and felt the car get pushed sideways. The other vehicle had come up in my blind spot.

Q: Did you have contact with the other vehicle's driver afterward?

A: Yes, we both pulled onto the shoulder. He said he didn't see me either. We exchanged information and then waited for the officer to arrive.

Q: How are you feeling now?

A: My neck is stiff and sore, and there's a dull ache in my lower back that gets worse when I sit for a long time. I started physical therapy and I'm taking it day by day.

Q: Have you seen a doctor for these symptoms?

A: Yes, I went to urgent care the same evening and they told me I had muscle strain in my neck and back. They gave me a follow-up appointment.

Q: Is there anything else you'd like to add?

A: Just that I was trying to drive carefully and I didn't expect that car to be there. I'd like this to be handled fairly.

Q: Thank you. That concludes the statement.